

		“NANCY WILLIAMS began sexually grooming and molesting” Plaintiff at the age of six. (FAC, ¶ 15.) “Over the next seven years, from approximately 1987 to 1994, NANCY WILLIAMS would regularly and routinely sexually abuse PLAINTIFF under the guise of “teaching” him lessons in sex and sexual gratification, exhibiting reprehensible behavior, including but not limited to: forcing PLAINTIFF to sleep in NANCY WILLIAMS’s bed with her; groping PLAINTIFF’s body; asking to touch PLAINTIFF’s bare penis; orally copulating PLAINTIFF’s penis; teaching PLAINTIFF about and encouraging acts of masturbation, including how to ensure DEFENDANT achieved climax; and pressuring and encouraging PLAINTIFF to put his mouth on NANCY WILLIAMS’s breasts to “nurse” despite PLAINTIFF being well beyond the appropriate age for breastfeeding.” (FAC, ¶ 15.) The Demurrer is OVERRULED as to Defendants argument that the allegations are uncertain and vague. In sum, the Demurrer is OVERRULED in its entirety. Defendant shall file an answer within 20 days after receiving notice of this ruling. The Case Management Conference is continued to November 19, 2026 at 1:30 p.m. <i>Plaintiff to give notice.</i>
109	Aguirre vs. Davita, Inc, 24-01394742	<i>Off-calendar.</i>
110	Tran vs. Dang, 24-01417792	<i>Off-calendar.</i>
111	NAJARRO-MYTINGER vs. VOLKSWAGEN GROUP OF AMERICA, INC., 24-01434972	Defendant McKenna Volkswagen Huntington Beach moves for judgment on the pleadings as to the third cause of action for negligent repair in Plaintiff’s complaint. In opposition, Plaintiff contends that the motion is moot because, according to Plaintiff, “McKenna Volkswagen Huntington Beach” is either the fictitious business name of McKenna Motors Huntington Beach, Inc. (an entity that

		was already dismissed from this case) or a phrase that does not identify any legal entity. (See ROA 125.) Notwithstanding Plaintiffs' contentions, an Answer was filed on 1/6/25 by "Defendant McKenna Volkswagen Huntington Beach," and that Answer has not been stricken. (ROA 20; see also ROA 125 "In any event, the Answer filed by McKenna Volkswagen Huntington Beach remains and that entity is still in the case.".) Accordingly, the Court does not find the motion moot. Defendant contends that the allegations of the third cause of action for negligent repair do not state a cause of action and, additionally, the claim is barred by the economic loss rule. Plaintiffs have offered no argument in opposition to Defendant's position. Failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 ("By failing to argue the contrary, plaintiffs concede this issue").) Accordingly, the motion is GRANTED with 20 days leave to amend. <i>Defendant to give notice.</i>
113	TBF Financial I, LLC vs. O'Connell, 24-01383167	Tentative Ruling is available as reflected in the 8/27/2026 minute order. The Case Management Conference will take place on 9/10/2026 at 1:30 p.m.